

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Order Granting Expedition

Entered May 15, 2026

The City of Norvale moves to expedite this interlocutory appeal and asks that it be reviewed for submission on the briefs. The Piedmont Booksellers Guild consents to expedited panel consideration but maintains that oral argument would assist the Court. The motion is granted to the extent stated in this order.

Briefing concluded with the City's May 13 reply. The record, hearing transcript, and joint appendix are complete. The appealed preliminary injunction governs recurring Cedar Commons fairs, including a date scheduled for June 13 and three later dates in 2026. Those circumstances supply good cause to move the fully briefed appeal promptly to decisional review. Expedition will not curtail any principal briefing period or require either party to abandon an issue already presented.

The clerk shall refer the briefs and record without delay to a three-judge panel for review under Federal Rule of Appellate Procedure 34(a)(2). The panel may request a focused supplemental submission if review discloses a matter that the existing briefs do not adequately address. Unless such a request is entered, the parties shall not file additional merits material without leave. The injunction remains in force during this procedural review, and this order states no view concerning jurisdiction, mootness, tailoring, security, specificity, or the proper appellate disposition.

The City's request for submission without oral argument is not decided merely by granting expedition. Rule 34 requires the assigned three judges to examine the briefs and record and to agree unanimously that argument is unnecessary under one of the rule's stated standards. The clerk therefore shall not mark the matter submitted until the panel has made that determination. If any member concludes that argument would significantly assist, the clerk shall set the earliest practical session and notify counsel.

If the panel unanimously finds that the facts and legal arguments are adequately presented and that oral argument would not significantly aid its work, it may enter a separate submission order. Such a determination would concern the mode of decision only. It would not imply that the appeal is frivolous, predetermine which party should prevail, or convert preliminary review into a final adjudication of the district claims.

The grant of expedition does not suspend a statute-based time limit, change the record, or alter the parties' burdens. It directs prompt internal consideration because the remaining event calendar makes delay consequential while leaving the panel full authority over argument and disposition. The clerk shall serve this order electronically and complete referral immediately. Entered by the Court on May 15, 2026.